

FL-25-002748 COOK VS COOK

County: stanislaus

Division: Family Law

Department: 11

Hearing date: 2026-08-10

Motion: Petitioner's Request for Order re Motion to Compel, etc.—HEARING REQUIRED. The following are the tentative ruling cases calendared before Judge J. Richard Distaso in Department #13: THERE ARE NO TENTATIVES. The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14: 430283 – ZYLSTRA VS ZYLSTRA Petitioner's Request for Order re Omitted Assets—DENIED, without prejudice. Petitioner previously filed an order request seeking to have the subject properties adjudicated as omitted assets but the Court denied this order request pursuant to the Findings and Order After Hearing (FOAH) of April 30, 2026. As noted in Respondent's Responsive Declaration, Petitioner's current order request does not purport to offer any new or different facts, laws or circumstances that could not have been obtained and/or presented exercising reasonable diligence at the time of Petitioner's original order request. Petitioner's order request was also filed more than ten (10) days after the Court's FOAH denying the original request. Accordingly, whether viewed as a motion for reconsideration of the Court's prior FOAH or as a renewal of the omitted order request, the motion is untimely and fails to make a sufficient factual or legal showing entitling Petitioner to seek reconsideration or renewal. (Code Civ. Proc., § 1008(a),(b).) Moreover, on this showing, the Court is not inclined to pursue reconsideration on its own motion. Lastly, the Court notes that Petitioner filed a "Responsive Declaration" that purports to offer a "Reply" to Respondent's Responsive Declaration, and also filed a memorandum of points and authorities in support of a motion to set aside the parties' judgment. However, no motion to set aside was filed and served by Petitioner and such a request is well outside the scope of the order request that Petitioner did file and serve. As such, it is not before the Court and the Court will not entertain argument or evidence as to it without Petitioner first filing and serving it on Respondent in compliance with the Rules of Court and Family Code section 215. As for Respondent's counter request for attorney's fees and costs, that request is also denied without prejudice as it falls outside the relief requested by Petitioner and as neither party has filed and served any current Income and Expense Declaration. (See, Cal. Rules of Ct., rule 5.92 [I&E's required for any order request dealing with property, finances or attorney's fees and costs].) This tentative ruling includes no decision on the merits, if any, of grounds to seek set aside of the parties' final judgment.

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FL-25-002748 – COOK VS COOK

Petitioner's Request for Order re Motion to Compel, etc.—HEARING REQUIRED.

The following are the tentative ruling cases calendared before Judge J. Richard Distaso in Department #13:

THERE ARE NO TENTATIVES.

The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14:

430283 – ZYLSTRA VS ZYLSTRA

Petitioner's Request for Order re Omitted Assets—DENIED, without prejudice.

Petitioner previously filed an order request seeking to have the subject properties adjudicated as omitted assets but the Court denied this order request pursuant to the Findings and Order After Hearing (FOAH) of April 30, 2026.

As noted in Respondent's Responsive Declaration, Petitioner's current order request does not purport to offer any new or different facts, laws or circumstances that could not have been obtained and/or presented exercising reasonable diligence at the time of Petitioner's original order request. Petitioner's order request was also filed more than ten (10) days after the Court's FOAH denying the original request.

Accordingly, whether viewed as a motion for reconsideration of the Court's prior FOAH or as a renewal of the omitted order request, the motion is untimely and fails to make a sufficient factual or legal showing entitling Petitioner to seek reconsideration or renewal. (Code Civ. Proc., § 1008(a),(b).) Moreover, on this showing, the Court is not inclined to pursue reconsideration on its own motion.

Lastly, the Court notes that Petitioner filed a "Responsive Declaration" that purports to offer a "Reply" to Respondent's Responsive Declaration, and also filed a memorandum of points and authorities in support of a motion to set aside the parties' judgment. However, no motion to set aside was filed and served by Petitioner and such a request is well outside the scope of the order request that Petitioner did file and serve. As such, it is not before the Court and the Court will not entertain argument or evidence as to it without Petitioner first filing and serving it on Respondent in compliance with the Rules of Court and Family Code section 215. As for Respondent's counter request for attorney's fees and costs, that request is also denied without prejudice as it falls outside the relief requested by Petitioner and as neither party has filed and served any current Income and Expense Declaration. (See, Cal. Rules of Ct., rule 5.92 [I&E's required for any order request dealing with property, finances or attorney's fees and costs].)

This tentative ruling includes no decision on the merits, if any, of grounds to seek set aside of the parties' final judgment.